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23-2-01207-37
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**THE SUPERIOR COURT OF THE STATE OF WASHINGTON**
**IN AND FOR THE COUNTY OF WHATCOM**

| | |
|---|---|
| SHANNON A. FRANKS and JANINE L. FRANKS, husband and wife and their marital community,<br><br>Plaintiffs,<br><br>vs.<br><br>CITY OF BELLINGHAM, a municipal corporation of the State of Washington, SETH FLEETWOOD, individually and in his professional capacity, and ERIC JOHNSTON, individually and in his professional capacity,<br><br>Defendants. | **NO.** 23-2-01207-37<br><br>**DEFENDANTS' ANSWER TO PLAINTIFFS' COMPLAINT**<br><br>*Judge Robert E. Olson* |

**COMES NOW**, Defendants City of Bellingham ("City"), Seth Fleetwood ("Fleetwood") and Eric Johnston ("Johnston") by and through the undersigned attorneys of record, and answers Plaintiffs' complaint by admitting, denying, and alleging as set forth below. Each and every allegation of Plaintiff's complaint not specifically admitted below is denied. The numbering below corresponds to the numbering in Plaintiff's complaint.



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## I. PARTIES

1.1 Defendants admit that Shannon A. Franks and Janine L. Franks are the Plaintiffs in this action. Defendants admit that Shannon A. Franks was employed by the City of Bellingham with the title of Maintenance Specialist. Defendants are without sufficient knowledge or information to form a belief as to the truth of the remaining allegations in this paragraph and therefore deny the same.

1.2 Defendants admit the first sentence. The Defendants deny the second sentence. In the third sentence, the City admits the incident that is the subject of this action occurred in Whatcom County and denies the remaining facts and legal conclusions contained therein.

1.3 Admit.

1.4 The first sentence is denied. The second sentence is admitted.

1.5 Admit.

## II. JURISDICTION AND VENUE

2.1 Admit.

2.2 Admit.

2.3 Admit.

2.4 Defendants admit that the Plaintiffs presented a claim for damages using the City of Bellingham's claim for damages form to the City of Bellingham Finance Director on September 1, 2022. The second sentence is admitted. The remaining allegations are legal conclusions for which no response is required in



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this answer. To the extent that response to the legal conclusions is necessary, the Defendants deny.

## III. FACTS

PLAINTIFF'S EMPLOYMENT WITH DEFENDANT BELLINGHAM

3.1 Admit.

3.2 Admit.

3.3 Deny.

3.4 Admit Plaintiff Franks performed the described work in this paragraph. Deny the assertion that Plaintiff Franks was the only employee performing the described work.

3.5 Admit.

3.6 Admit the first sentence. Regarding the second and third sentence, the Defendants admit the role described is a portion of Plaintiff Franks' employment duties but deny the sentences describe the full scope of Plaintiff Franks's job responsibilities. Deny the last sentence.

3.7 Deny the first sentence because Plaintiff Franks would have earned $93,152 in 2021. Deny the second sentence. Admit Plaintiff Franks was 56 years old in 2021 and deny the remaining allegations in the third sentence.

3.8 Admit.

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3.9 Admit the first sentence. Deny the second sentence. Admit the third sentence. Deny the fourth sentence.



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3.10 Admit first sentence. Deny the second sentence. Regarding the third sentence, the Defendants admit the role described is a partial description of Plaintiff Frank's employment but deny it is the full scope of Plaintiff Franks's job responsibilities. Admit the fourth sentence. Admit the fifth sentence. Admit the sixth sentence. Deny the seventh, eighth, and ninth sentences.

3.11 Admit sentences the first and second sentences. Deny the third sentence.

3.12 Deny.

3.13 Deny.

3.14 Deny.

3.15 Defendants admit the first sentence. Defendants deny the second sentence.

3.16 Deny.

3.17 Deny the use of the term "exemption" in this sentence. If "accommodation" was used instead of "exemption," the Defendants would admit. As written, the Defendants deny.

3.18 Deny.

3.19 Admit.

3.19[1] Defendants admit visitors were not required to show proof of vaccination. Defendants admit some visitors voluntarily signed in for some departments during certain time periods. The remaining allegations are denied.

[1] Two paragraphs were listed as 3.19 in the complaint. For consistency's sake, the Defendants kept the Plaintiff's numbering.



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3.20 Admit that tiny home guests were not subject to Mayor Fleetwood's Executive Order 2021-02. The remaining allegations in this sentence are denied.

3.21 Admit.

3.22 Deny.

3.23 Defendants are without sufficient knowledge or information to form a belief as to the truth of this paragraph and therefore deny the same.

3.24 Admit Plaintiff Franks complied with Defendants' requirements for seeking a religious accommodation from the vaccine mandate. Deny allegations regarding a "religious exemption."

3.25 Deny. On October 21, the City of Bellingham acknowledged the Plaintiff's sincerely held religious beliefs.

3.26 Admit with the caveat the Plaintiff emailed Elizabeth Monahan on October 25, 2021, not October 21, 2021.

3.27 Admit.

3.28 Admit.

3.29 Deny.

3.30 Admit Defendant Johnston engaged in correspondence with Plaintiff Franks on November 24, 2021. The correspondence speaks for itself, and the Defendants deny any further allegations contained in this paragraph.

3.31 Deny.

3.32 Admit.

3.33 Deny.



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3.34 Deny the Plaintiff was "granted an exemption." Admit the remaining allegations in this sentence.

3.35 Deny.

3.36 Deny.

3.37 Deny.

3.38 Deny.

## IV. FIRST CAUSE OF ACTION
## (Religious Discrimination in Violation of RCW 49.60, et. seq.)

4.1 The Defendants incorporate herein their responses to the allegations set forth in paragraphs 1.1 through 3.38 of the Complaint.

4.2 Admit.

4.3 Deny.

4.4 Deny.

4.5 Deny.

## V. SECOND CAUSE OF ACTION
## (Retaliation in Violation of RCW 49.60 et. seq.)

5.1 The Defendants incorporate herein their responses to the allegations set forth in paragraphs 1.1 through 4.5 of the Complaint.

5.2 Admit.

5.3 Deny.

5.4 Deny.



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## VI. THIRD AND FOURTH CAUSES OF ACTION
## (Retaliation and Constructive/Wrongful Discharge in Violation of Public Policy)

6.1 The Defendants incorporate herein their responses to the allegations set forth in paragraphs 1.1 through 5.4 of the Complaint.

6.2 Deny.

6.3 Deny.

6.4 Deny.

## VII. FIFTH, SIXTH AND SEVENTH CAUSES OF ACTION
## (Negligent Supervision and/or Retention and Respondeat Superior)

7.1 The Defendants incorporate herein their responses to the allegations set forth in paragraphs 1.1 through 6.4 of the Complaint.

7.2 Deny.

7.3 Deny.

## VIII. RELIEF REQUESTED

The Plaintiffs' relief requires no response from the Defendants. To the extent a response is required, the Defendants deny generally the relief requested.

## AFFIRMATIVE DEFENSES

Defendants assert the following affirmative defenses and reserve the right to amend based on the discovery of additional facts:



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A. The Defendants deny that they are in any manner responsible for Plaintiffs' alleged injuries and damages.

B. The Defendants have exercised reasonable and due care in all respects relative to the subject of this litigation.

C. Plaintiffs have failed to state a claim upon which relief can be granted.

D. Plaintiffs cannot prove the necessary elements of any of their claims and causes of action.

E. The Defendants' actions were taken for legitimate, non-discriminatory, and non-retaliatory reasons.

F. Plaintiffs may have failed to mitigate damages, to the extent damages exist.

G. Plaintiffs' claims may be barred by the applicable statutes of limitations.

H. At all times material to this action and the allegations set forth in the Complaint, Defendants acted lawfully and in good faith and without any intent to deny Plaintiffs any rights under federal, state or local law.

I. Plaintiffs failed to adequately engage in the interactive process.

J. The accommodations Plaintiff Shannon Franks requested were unreasonable and/or posed undue hardship on Defendants.

K. The accommodations Plaintiff Shannon Franks requested were unreasonable, as they would have infringed on the rights and safety of other employees.



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L. Plaintiffs' alleged damages were caused in whole or in part by Plaintiffs' own conduct.

M. Plaintiffs may have failed to exhaust their administrative remedies.

N. Plaintiffs may have caused and contributed through their own comparative fault, intentional conduct, actions, negligence, or other failures, to any injuries or damages suffered. The employee's conduct may have constituted, without limitation, contributory fault, and negligence.

## RESERVATION OF RIGHTS

Defendants reserve the right to supplement or amend this answer, including the assertion of additional affirmative defenses, based upon further investigation and discovery into Plaintiffs' claims.

## REQUEST FOR RELIEF

Defendants request the following relief:

1. Dismissal of Plaintiffs' complaint with prejudice and that Plaintiffs obtain no relief.

2. Award of attorney's fees and costs to the Defendants as allowed by law.

3. That, in the event liability exists, damages be apportioned according to fault as required by RCW 4.22.070.

4. Such other and further relief as the Court deems just and proper.



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Respectfully submitted this 30th day of August, 2023.

**CITY OF BELLINGHAM**

**Michael E. Good**, WSBA #44857
Sr. Assistant City Attorney

**CITY OF BELLINGHAM**

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